

K.S. Puttaswamy vs. Union of India

Case Study – 8

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INTRODUCTION

K.S. Puttaswamy vs. Union of India is an important case in Indian Constitutional Law. This case is mainly about the Right to Privacy. The Supreme Court decided that privacy is a fundamental right of every person in India. The judgment was given by a nine-judge bench of the Supreme Court on 24 August 2017. This case became a landmark case in India.

FACTS OF THE CASE

Justice K.S. Puttaswamy was a retired judge. He filed a petition against the Union Government. The case was connected with the Aadhaar scheme and the collection of personal and biometric information of people.

He argued that collecting personal information may affect the privacy of individuals. The Government argued that the Indian Constitution did not clearly mention privacy as a fundamental right.

Because this was an important constitutional question, the matter was referred to a nine-judge bench of the Supreme Court.

LEGAL ISSUES

The main questions before the Supreme Court were:

1. Is the Right to Privacy a Fundamental Right?
2. Is privacy protected under the Indian Constitution?
3. Can the Government collect and use the personal information of citizens?
4. Were the earlier decisions which said that privacy was not a fundamental right correct?

ARGUMENTS

The petitioner argued that privacy is necessary for a person's dignity, freedom and personal life. Every person should have control over their personal information and personal decisions.

The Government argued that the Constitution does not specifically mention the Right to Privacy. It also referred to some earlier Supreme Court decisions.

JUDGMENT

On 24 August 2017, the nine-judge bench of the Supreme Court gave a unanimous judgment. The Court held that the Right to Privacy is a Fundamental Right.

The Court said that privacy is protected as an important part of the Right to Life and Personal Liberty under Article 21. It is also connected with the freedoms guaranteed under Part III of the Indian Constitution.

The Court also overruled the earlier decisions in M.P. Sharma and Kharak Singh to the extent that they denied constitutional protection to the Right to Privacy.

LEGAL PRINCIPLE

The main legal principle of this case is that:

Every individual has a Right to Privacy as a Fundamental Right.

Privacy is connected with human dignity, liberty and personal freedom.

However, this right is not completely unlimited. The Government can restrict privacy only when there is a valid law and a proper legal reason for doing so.

IMPORTANCE OF THE CASE

This case is very important because it protected the personal life of Indian citizens. It also became important in the digital world, where a large amount of personal information is collected and stored.

The judgment gave importance to the protection of personal data and individual freedom. It also influenced later discussions about data protection and the use of personal information.

CONCLUSION

In conclusion, K.S. Puttaswamy vs. Union of India is a landmark case in India. The Supreme Court clearly recognised that privacy is a Fundamental Right. The judgment protected the dignity, freedom and personal choices of individuals. This case shows that every person has the right to live with dignity and maintain their private life.